

**SUBSTITUTE FOR
SENATE BILL NO. 508**

A bill to restrict certain immigration enforcement actions in certain locations; and to provide for the powers and duties of certain officers and entities.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. As used in this act:

2 (a) "Educational institution" means that term as defined in
3 section 2 of the Michigan election law, 1954 PA 116, MCL 168.2.

4 (b) "Federal immigration officer" means an officer, employee,
5 or individual paid by or acting as an agent of the United States
6 Immigration and Customs Enforcement or United States Customs and
7 Border Protection, or any division thereof, or any other officer,
8 employee, or individual paid by or acting as an agent of the United
9 States Department of Homeland Security.



(c) "Immigration enforcement action" means any of the following actions taken by a federal immigration officer for the purpose of immigration enforcement or to obtain information in regards to an individual's immigration or citizenship status:

(i) Arresting or interviewing an individual.

(ii) Conducting a search or surveillance.

(d) "Place of worship" means a church, synagogue, mosque, or other institution of worship, including, but not limited to, a building rented for a religious service.

(e) "Protected area" means all of the following:

(i) An educational institution.

(ii) A hospital or other health facility.

(iii) A courthouse.

(iv) The site of an organization that is assisting children, pregnant women, victims of crime or abuse, or an individual with significant mental or physical disabilities.

(v) A public library.

(vi) A place of worship.

Sec. 2. A federal immigration officer may not conduct an immigration enforcement action in a nonpublic area of a protected area, unless 1 or more of the following apply:

(a) The federal immigration officer presents a valid judicial warrant.

(b) An exigent circumstance exists.

